

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.:
Date Purchased:

-----X
ALBERT PONCE,

Plaintiff,

-against-

THE CITY OF NEW YORK, OFFICER PETER WONG
SHIELD NO.:26984, OFFICER JASON RUBENSTEIN
SHIELD NO.: 24550, OFFICER DANIEL MENSING and
SERGEANT RICHARD JONES SHIELD NO.: 04142,

Defendants,
-----X

SUMMONS

Plaintiffs designate New York
County as the place of trial.

The basis of venue is:
Location of Occurrence

County of New York

To the above named Defendant:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, while service is made by delivery upon you personally within the state, or, within 30 days after completion of service while service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: White Plains, NY
April 5, 2017

RAWLINS LAW, PLLC


Gary N. Rawlins, Esq.
Attorney for Plaintiff

ALBERT PONCE

777 Westchester Ave, Suite #101

White Plains, NY 10604

Tel : (212) 926-0050

Fax (347) 332-1592

TO:

Zachary Carter, Esq.
Corporation Counsel
Attorney for Defendant
CITY OF NEW YORK
New York City Law Department
100 Church Street
New York, NY 10007

OFFICER PETER WONG SHIELD NO.:26984
524 West 42nd Street,
New York, NY 10036

OFFICER JASON RUBENSTEIN SHIELD NO.: 24550
524 West 42nd Street,
New York, NY 10036

OFFICER DANIEL MENSING
524 West 42nd Street,
New York, NY 10036

SERGEANT RICHARD JONES SHIELD NO.: 04142
524 West 42nd Street,
New York, NY 10036

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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ALBERT PONCE

Plaintiff,

-against-

**VERIFIED
COMPLAINT**

Index No.:

Date Purchased:

THE CITY OF NEW YORK, OFFICER PETER WONG
SHIELD NO.:26984, OFFICER JASON RUBENSTEIN
SHIELD NO.: 24550, OFFICER DANIEL MENSING and
SERGEANT RICHARD JONES SHIELD NO.: 04142,

Defendants,

-----X

Plaintiff, by his attorney, **GARY N. RAWLINS**, as and for his Verified Complaint, respectfully
alleges, upon information and belief:

1. This is a civil litigation action seeking damages against defendants for committing acts under color of law, and depriving plaintiff of rights secured by the Constitution and laws of the United States. Defendants, while acting in their capacities as policemen of the City of New York, State of New York, deprived Plaintiff of his liberty without due process of law, thereby depriving Plaintiff of his rights, privileges and immunities as guaranteed by the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States. The Court has jurisdiction of this action under 42 U.S.C. § 1983, 28 U.S.C. § 1343, and 28 U.S.C. § 1331.

2. The Plaintiff, **ALBERT PONCE**, at all times herein mentioned was and still is a resident of the County of WESTCHESTER and the State of New York.

3. At all times mentioned herein, Defendants **OFFICER PETER WONG SHIELD NO.:26984, OFFICER JASON RUBENSTEIN SHIELD NO.: 24550, OFFICER**

DANIEL MENSING and SERGEANT RICHARD JONES SHIELD NO.: 04142 at all times herein mentioned were and still are residents of the County of NEW YORK, State of New York.

4. At all times herein mentioned, Defendant **CITY OF NEW YORK** ("NYC"), was and still is a municipal corporation, created, organized and existing under and by virtue of the laws of the State of New York.

5. At all times herein mentioned, Defendants NYC and Defendants **OFFICER PETER WONG SHIELD NO.:26984, OFFICER JASON RUBENSTEIN SHIELD NO.: 24550, OFFICER DANIEL MENSING and SERGEANT RICHARD JONES SHIELD NO.: 04142** stood in such a relationship with each other in providing law enforcement services as to make each liable for the acts and omissions of the others.

6. Defendants NYC are vicariously liable for the acts of Defendants **OFFICER PETER WONG SHIELD NO.:26984, OFFICER JASON RUBENSTEIN SHIELD NO.: 24550, OFFICER DANIEL MENSING and SERGEANT RICHARD JONES SHIELD NO.: 04142.**

7. At all times herein mentioned, Defendants **OFFICER PETER WONG SHIELD NO.:26984, OFFICER JASON RUBENSTEIN SHIELD NO.: 24550, OFFICER DANIEL MENSING and SERGEANT RICHARD JONES SHIELD NO.: 04142** were and still are police officers employed by the New York City Police Department.

AS AND FOR A FIRST 1983 CAUSE OF ACTION FOR FALSE ARREST AND MALICIOUS PROSECUTION AS AGAINST ALL DEFENDANTS IN VIOLATION OF PLAINTIFF'S UNITED STATES CONSTITUTIONAL RIGHTS

8. Plaintiff **ALBERT PONCE** repeats and re-alleges each and every allegation contained in the above paragraphs with full force and effect as if each were more fully set forth herein.

9. Plaintiff **ALBERT PONCE** sues all Defendants in their capacities.

10. On or about August 23, 2014, at approximately at approximately 12:25am, at 334 West Houston Street, New York County, New York, Plaintiff **ALBERT PONCE** was driving when he was pulled over. When he asked for what, one of the defendant officers told him for showing signs of intoxication. Mr. Ponce was asked to take a breathalyzer and when he tried to explain himself, he was arrested. When he asked for his handcuffs to be loosened, he was denied. He was brought to the 7th Precinct where he spent approximately 3-4 hours before being released after his breathalyzer results read 0.

11. The wrongful, unjustifiable and unlawful apprehension, arrest, detention and imprisonment were all carried out without a warrant or probable cause.

12. At all relevant times, Defendants acted forcibly in apprehending, arresting and imprisoning Plaintiff **ALBERT PONCE**.

13. Prior to August 23, 2014, the City of New York and the New York Police Department developed and maintained policies or customs exhibiting deliberate indifference to the constitutional rights of citizens, which caused the violation of Mr. Ponce's rights. It was the policy and/or custom of the City of New York to inadequately and improperly investigate citizens' complaints of police misconduct and actual acts of misconduct; and acts of misconduct were instead tolerated by the City of New York. It was the policy and/or custom of the City or New York to inadequately supervise and train its police officers, managers and employees including the respondent officers and ADA'S thereby failing to adequately discourage further constitutional violations on the part of their agents. Officers were encouraged and often harassed to make as many arrest as possible without concern for the validity of those arrests. The respondents agencies did not require appropriate in-service training or re-training of officers and employees who were known to have engaged in misconduct or who had shown a propensity to encourage rule violations for their own convince at the expense of others.

AS AND FOR A SECOND CAUSE OF ACTION FOR EXCESSIVE FORCE PURSUANT TO 1983

14. Plaintiff repeats and re-allege each and every allegation set forth above with the same force and effect as if set forth at length herein.

15. On or about August 23, 2014, Defendants **OFFICER PETER WONG SHIELD NO.:26984, OFFICER JASON RUBENSTEIN SHIELD NO.: 24550, OFFICER DANIEL MENSING and SERGEANT RICHARD JONES SHIELD NO.: 04142** used excessive force in handling the Plaintiff.

16. Solely as a result of Defendants **OFFICER PETER WONG SHIELD NO.:26984, OFFICER JASON RUBENSTEIN SHIELD NO.: 24550, OFFICER DANIEL MENSING and SERGEANT RICHARD JONES SHIELD NO.: 04142** negligence, Plaintiff **ALBERT PONCE** was caused to suffer severe and serious personal injuries to mind and body, further, that Plaintiff was subjected to great physical pain, mental anguish, embarrassment, extreme shock and nervousness.

17. The amount of force used to apprehend Plaintiff was unjustified.

18. By reason of the foregoing, Mr. Ponce's civil rights were violated.

19. Plaintiff **ALBERT PONCE** was severely injured and damage which sustained his to suffer from severe nervous shock and mental anguish, great physical pain and emotionally damaged some of which injuries are believed to be permanent in nature and duration, and Plaintiff will be permanently caused to suffer pain, inconvenience and other effects of such injuries; Plaintiff incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of said injuries; Plaintiff will be unable to pursue his usual duties with the same degree of efficiency as prior to this accident, all to Plaintiff's great damage.

20. Due to Defendants **OFFICER PETER WONG SHIELD NO.:26984, OFFICER JASON RUBENSTEIN SHIELD NO.: 24550, OFFICER DANIEL MENSING and SERGEANT RICHARD JONES SHIELD NO.: 04142** negligence, Plaintiff **ALBERT PONCE** is entitled to damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

AND FOR A THIRD CAUSE OF ACTION FOR ASSAULT IN VIOLATION OF HIS CONSTITUTIONAL RIGHTS

21. Plaintiff **ALBERT PONCE** repeats and re-alleges each and every allegation contained above as if fully set forth herein.

22. Defendants **OFFICER PETER WONG SHIELD NO.:26984, OFFICER JASON RUBENSTEIN SHIELD NO.: 24550, OFFICER DANIEL MENSING and SERGEANT RICHARD JONES SHIELD NO.: 04142** caused Plaintiff to apprehend and/or fear unfriendly contact.

23. A reasonable person in the same circumstances as Plaintiff would have apprehended and/ or feared unfriendly contact.

24. Defendants **OFFICER PETER WONG SHIELD NO.:26984, OFFICER JASON RUBENSTEIN SHIELD NO.: 24550, OFFICER DANIEL MENSING and SERGEANT RICHARD JONES SHIELD NO.: 04142** assaulted Plaintiff in violation of his civil rights.

25. Due to the Defendants' assault, Plaintiff **ALBERT PONCE** is entitled to damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

AS AND FOR A FOURTH CAUSE OF ACTION FOR NEGLIGENT HIRING AND SUPERVISION

26. Plaintiff repeats and re-iterates each and every allegation above as if set forth at length herein.

27. Prior to on or about August 23, 2014, Defendants **NYC** knew or should have known Defendants **OFFICER PETER WONG SHIELD NO.:26984, OFFICER JASON RUBENSTEIN SHIELD NO.: 24550, OFFICER DANIEL MENSING and SERGEANT RICHARD JONES SHIELD NO.: 04142** to be unruly and to verbally threaten and to harass other human beings.

28. That defendants NYC negligently hired and trained **OFFICER PETER WONG SHIELD NO.:26984, OFFICER JASON RUBENSTEIN SHIELD NO.: 24550, OFFICER DANIEL MENSING and SERGEANT RICHARD JONES SHIELD NO.: 04142** negligently failed to supervise or discharge them from their employ, thereby causing and contributing to the above stated incident.

29. Plaintiff was caused to sustain serious injuries, caused to suffer pain, offense, shock and mental anguish; that these injuries and their effects will be permanent; and as a result of said injuries Plaintiff has been caused to incur, and will continue to incur expenses for medical care and attention; Plaintiff was and will continue to be rendered unable to perform his normal activities and duties having sustained a resultant loss there from.

AS AND FOR A FIFTH CAUSE OF ACTION FOR EGREGIOUS CONDUCT

30. That as a result of the foregoing, Plaintiff was damaged in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

31. Plaintiffs repeat and re-allege each and every allegation set forth above with the same force and effect as if set forth at length herein.

32. The acts of NYC, **OFFICER PETER WONG SHIELD NO.:26984, OFFICER JASON RUBENSTEIN SHIELD NO.: 24550, OFFICER DANIEL MENSING and SERGEANT RICHARD JONES SHIELD NO.: 04142** complained of herein were performed with malice and willful intent and are beyond the bounds of a civilized society, especially here where Defendants knew they did not have just cause from the outset to arrest and detain Plaintiff.

33. Plaintiff was caused to sustain serious injuries and to suffer pain, shock, mental anguish, embarrassment, humiliation, anxiety and bodily injury.

34. That as a result of the foregoing, Plaintiff **ALBERT PONCE** seeks punitive damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR FAILURE
TO INTERVENE TO PREVENT THE VIOLATION OF PLAINTIFF'S CIVIL
RIGHTS AS AGAINST ALL DEFENDANTS**

35. Plaintiff **ALBERT PONCE** repeats and re-alleges each and every allegation contained in the paragraphs above with full force and effect as if each were more fully set forth herein.

36. As a result of the above actions, Defendants **NYC**, individually, and/or vicariously, by and through its agents, servants and /or employees, and **OFFICERS**, failed to intervene to prevent or end the unlawful conduct inflicted upon Plaintiff **ALBERT PONCE** by defendant

OFFICERS.

37. As a result of the foregoing, Defendants **NYC** individually and and/or vicariously by and through their agents servants, and/or employees, and **OFFICERS**, displayed a deliberate indifference to Plaintiff **ALBERT PONCE** rights to be free from unreasonable searches and seizures and excessive use of force.

38. As a result of the foregoing, Defendants **NYC** individually and/or vicariously by and through its agents servants, and/or employees, including **OFFICER PETER WONG SHIELD NO.:26984, OFFICER JASON RUBENSTEIN SHIELD NO.: 24550, OFFICER DANIEL MENSING and SERGEANT RICHARD JONES SHIELD NO.: 04142** acted intentionally, willfully, maliciously, with reckless disregard for and deliberate indifference to Plaintiff's rights and physical well being.

39. By reason of the foregoing, Plaintiff sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

AS AND FOR A SEVENTH CAUSE OF ACTION
FOR INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS
AGAINST ALL DEFENDANTS

40. Plaintiff **ALBERT PONCE** repeats and re-alleges each and every allegation contained in paragraphs above with full force and effect as if each were more fully set forth herein

41. The Defendants, and each of them, acted outrageously for their above-stated roles in the wrongful stop, detainment, charging, failing to investigate, failure to adhere to law, rule and regulations known to them, failing to heed Plaintiff **ALBERT PONCE** protestations, manhandling, false arrest, prolonged captivity, intimidation and public humiliation of Plaintiff.

42. Said emotional harm was exacerbated by the persistence of Defendants, by maintaining the false claims and criminal charges against the Plaintiff **ALBERT PONCE** without any further investigation of the incident. Defendants knew or had reasons to know that the criminal charges against Plaintiff were false or without merit, yet that they detained and prosecuted Plaintiff with the intention of causing further harm and duress to the Plaintiff.

43. Defendants knew that their conduct would cause severe and extreme emotional harm to the Plaintiff **ALBERT PONCE** and injury to his good name and reputation.

44. Said harm did in fact occur in this case, in that Plaintiff **ALBERT PONCE** was debilitated to the point where he still suffers from episodes of anxiety, anger, loss of sleep, and other impingement of the emotional good health; to the extent that Plaintiff have had to seek support and counseling within the family.

45. By reason of the foregoing, Plaintiff **ALBERT PONCE** sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

AS AND FOR AN EIGHTH CAUSE OF ACTION
FOR PUNITIVE DAMAGES
AGAINST ALL DEFENDANTS

46. Plaintiff **ALBERT PONCE** repeats and re-alleges each and every allegation contained in paragraphs above with full force and effect as if each were more fully set forth herein.

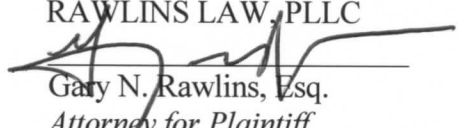
47. Defendants' acts were reckless, willful, wanton, malicious, oppressive, outrageous, outside the bounds of conduct tolerated in a civil society, without regard for Plaintiff well being, and were based on a lack of concern and ill-will towards Plaintiff.

48. Plaintiff **ALBERT PONCE** therefore demands punitive damages in the amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

WHEREFORE, Plaintiff demands judgment against the Defendants in each separate cause of action in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter; together with the costs and disbursements of this action.

Dated: White Plains, NY
April 5, 2017

RAWLINS LAW, PLLC



Gary N. Rawlins, Esq.
Attorney for Plaintiff

ALBERT PONCE

777 Westchester Ave, Suite #101

White Plains, NY 10604

Tel : (212) 926-0050

Fax (347)332-1592

TO:

Zachary Carter, Esq.
Corporation Counsel
Attorney for Defendant
CITY OF NEW YORK
New York City Law Department
100 Church Street
New York, NY 10007

OFFICER PETER WONG SHIELD NO.:26984
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New York, NY 10036

ATTORNEY'S VERIFICATION

Gary N. Rawlins, an attorney admitted to practice in the Courts of the State, and attorney for Plaintiff states:

That your affirmant has read the foregoing instrument and knows the contents thereof; that the same is true to your affirmant's own knowledge except as to the matters which are stated therein to be alleged on information and belief, and as to those matters your affirmant believes them to be true. The source of your affirmant's information and belief is an investigation made with respect to the facts in this action.

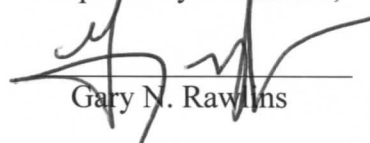
That the reason this Verification is made by affirmant and not by the Plaintiff is because the Plaintiff does not reside within the county where I maintain my Office.

The undersigned affirms that the foregoing statement is true, under penalties of perjury.

Date: White Plains, NY

4-5, 2017

Respectfully Submitted,



Gary N. Rawlins

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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ALBERT PONCE,

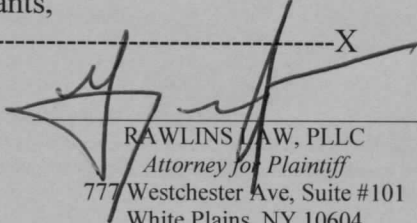
Plaintiff,

**SUMMONS and VERIFIED
COMPLAINT**

-against-

THE CITY OF NEW YORK, OFFICER PETER WONG
SHIELD NO.:26984, OFFICER JASON RUBENSTEIN
SHIELD NO.: 24550, OFFICER DANIEL MENSING and
SERGEANT RICHARD JONES SHIELD NO.: 04142,

Defendants,
-----X


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TO:

Zachary Carter, Esq.
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Attorney for Defendant
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524 West 42nd Street,
New York, NY 10036

Service of a copy of the within is hereby admitted

Dated: _____

Attorney(s) for Defendant(s)